

3.

CASE #	CASE NAME	HEARING NAME
CVRI2600286	TORRES VS HYUNDAI MOTOR AMERICA	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

DENY

Grant Defendant's Request for Judicial Notice.

The Motion is denied because Defendant cannot show that Plaintiff agreed to binding arbitration in an enforceable contract. The arbitration provision in the Warranty Handbook does not constitute a written agreement to arbitrate. A warranty is different than a contract. Warranties, unlike contracts, do not impose binding obligations upon the buyer. (See *Weinstat v. Dentsply Int'l, Inc.* (2010) 180 Cal.App.4th 1213.) Under both federal and state law, arbitration cannot be compelled absent an arbitration agreement. (Adajar v. RWR Homes, Inc. (2008) 160 Cal.App.4th 563.) Equitable estoppel does not apply because Defendant has failed to show that the Warranty Handbook is an enforceable contract.

Plaintiff cannot be compelled to arbitrate under the Connected Services Agreement (CSA) because the declaration of Vijay Rao, Defendant's Director of Ops & Owner Apps/Web, shows that he does not have personal knowledge that Plaintiff enrolled in the CSA, and the CSA agreement only covers telematic and technology services, and Plaintiff complains of mechanical engine and transmission defects.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2601592	COUNTY OF RIVERSIDE VS VELASQUEZ	MOTION FOR PRELIMINARY INJUNCTION

Tentative Ruling:

GRANT